

Case :- WRIT - C No. - 2667 of 2021

Petitioner :- Karam Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Balram Jee Verma

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Balram Jee Verma for the petitioner, learned Standing Counsel for the State - respondent no. 1 and Shri Narendra Kumar Tiwari for respondent nos. 2 to 4.

The petitioner has an electricity connection having load of 10.50 H.P. for running Atta Chakki. Since 2017, petitioner could not run Atta Chakki (flour mill) due to financial crisis. On 06.02.2018, the respondents - Nigam issued disconnection notice on the ground of non-payment of arrears of electricity dues to the tune of Rs. 1,89,686/-. In respect of his grievance, petitioner made a representation before the respondent no. 3 requesting that as he has deposited the entire electricity dues till 2016, after adjusting the deposits made by him, amended electricity bill be made and the electricity connection may be restored.

Learned counsel for the petitioner has submitted that a sum of Rs. 2,83,396/- is shown to be due against him against electricity charges, which is incorrect. The respondents - Nigam has not given the benefit of exemption to pay surcharge and made the demand without furnishing any details. It is finally submitted that the petitioner is ready to deposit the amount in case amended bill is issued after adjusting the deposits made by him.

Learned counsel for the respondents - Nigam opposed the submission by submitting that the electricity assessment has correctly been made and the petitioner is liable to pay the same. He further submits that against the correctness of an electricity bill, the petitioner has a statutory, alternative and efficacious remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

Be that as it may, no useful purpose would be served by keeping this writ petition pending and this writ petition is disposed of with liberty to the petitioner to file objections along with a copy of this order against the assessment of electricity bill before the competent authority within two weeks from

today. In case such objection is filed, the competent authority shall consider and decide the same by a reasoned and speaking order, as expeditiously as possible, preferably, within six weeks thereafter.

In the event the petitioner deposits 33% of the demanded amount, restoration of the electricity supply of the petitioner shall be considered forthwith.

Order Date :- 1.2.2021

Amit Mishra